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PAKISTAN NATIONAL ASSEMBLY

A) Dealing with Internal Displacement: Addressing the Humanitarian Crisis in Balochistan and Khyber Pakhtunkhwa

B) Balancing Power: The 18th Amendment, the Demand for New Provinces, and the Call for a 27th Amendment

NED MUN VI

NED MODEL UNITED NATION VI

PNA

(PAKISTAN NATIONAL ASSEMBLY)

AGENDA A

Dealing with International Displacement: Humanitarian Crisis in Balochistan & Khyber Pakhtunkhwa

MANDATE OF THE COMMITTEE:

The Pakistan National Assembly (PNA) committee simulates Pakistan's lower house of Parliament. Its mandate includes:

- Discussing national issues that affect Pakistan's stability and public welfare.
- Debating internal crises such as displacement, terrorism, and humanitarian emergencies.
- Creating policy recommendations, resolutions, and reforms for the Government of Pakistan.
- Ensuring the protection of citizens' rights and overseeing government action related to national security and humanitarian needs.

For this agenda, the PNA will examine the displacement occurring within Pakistan. Especially in Balochistan and Khyber Pakhtunkhwa (KPK) and propose practical solutions for relief, rehabilitation, and long-term stability. As of recent estimates, Pakistan hosts approximately **3.5–4 million Afghan nationals**, including registered refugees, undocumented migrants, and recent returnees. Nearly **70%** of these populations reside in **Khyber Pakhtunkhwa and Balochistan** due to geographic proximity to Afghanistan.

PURPOSE:

The purpose of this agenda is to build a clear and balanced understanding of the root causes behind the displacement of Afghan refugees and affected local communities. Decades of conflict and political instability in Afghanistan have forced millions to flee, with Pakistan hosting one of the world's largest protracted refugee populations for over four decades. This agenda seeks to contextualize displacement not as a temporary phenomenon, but as a long-term regional challenge with deep social, economic, and security implications.

A key focus is the humanitarian crisis in Khyber Pakhtunkhwa and Balochistan, where poverty, conflict, climate-induced disasters, and sustained refugee presence intersect. These provinces already face development challenges, and the additional strain on health, education, housing, and employment has intensified vulnerabilities for both refugees and host communities. Khyber Pakhtunkhwa and Balochistan together host the majority of Afghan refugees in Pakistan, making them central to any meaningful policy response.

The agenda also aims to identify critical challenges related to undocumented Afghan refugees, including complications surrounding Proof of Registration and Afghan Citizen Card documentation, as well as the human and administrative consequences of repatriation policies. Documentation gaps limit access to basic services, legal protection, and employment, while uncertainty around policy implementation creates fear and instability within refugee and host populations alike.

Another important objective is to examine the impact of key border crossings, particularly Torkham and Chaman, on local stability and regional dynamics. These crossings are not only major transit points for refugees but also vital economic lifelines, facilitating trade worth billions of dollars annually. Disruptions at these borders directly affect livelihoods, cross-border relations, and security conditions in surrounding areas.

Furthermore, this agenda seeks to explore how Pakistan can effectively protect its citizens and maintain national security while continuing to respect refugee rights and humanitarian principles. Striking this balance is essential for social cohesion, international credibility, and long-term internal stability.

Ultimately, the agenda aims to develop practical and inclusive solutions that strengthen coordination between government authorities, United Nations agencies, and non-governmental organizations. By improving collaboration, data-sharing, and policy coherence, it seeks to recommend forward-looking strategies that support sustainable development, peaceful coexistence, and stable, well-managed borders for the future.

INTRODUCTION:

Balochistan and Khyber Pakhtunkhwa remain the provinces most affected by displacement and the ongoing humanitarian situation linked to Afghanistan due to their strategic location and historical ties with cross-border movement. Their shared borders with Afghanistan make them primary reception areas for Afghan refugees, undocumented migrants, and returnees. As a result, both provinces have experienced prolonged demographic pressure that has reshaped local economies, settlement patterns, and social dynamics over time.

In Khyber Pakhtunkhwa, the impact of militancy and frequent cross-border movement through the Torkham border has had lasting effects on security and governance. The province hosts large refugee populations living both in camps and within host communities, often in densely populated districts. Many refugee settlements are located in areas already facing high unemployment and limited development funding. Additionally, cross-border disruptions at Torkham regularly affect trade flows and daily wage labor, directly influencing household incomes in nearby districts.

Balochistan faces a distinct but equally severe humanitarian landscape. Refugees are heavily concentrated around Quetta and Chaman, where weak urban planning and limited service coverage have led to informal settlements. Political instability and chronic poverty further constrain the provincial government's capacity to respond effectively. Balochistan also faces extreme climate vulnerability; prolonged droughts have reduced agricultural output, while flash floods frequently damage roads and basic infrastructure, worsening access to aid and essential services.

Both provinces confront shared structural challenges that deepen humanitarian stress. Infrastructure limitations have resulted in overcrowded schools, under-resourced hospitals, and inadequate sanitation systems. The growing demand for affordable housing and low-skill employment has intensified competition between refugees and host communities. Moreover, difficulties in verifying and documenting Afghan families have complicated service delivery and law enforcement, contributing to mistrust and social tension at the community level. These combined pressures underline the need for sustainable, coordinated policies that address displacement while strengthening local resilience and governance.

HISTORY:

The history of Afghan displacement into Pakistan dates back to 1979, when the Soviet–Afghan War triggered the first large-scale influx of refugees. This movement did not remain a one-time event; instead, it continued through successive phases of instability, including the Afghan civil wars of the 1990s, the period of Taliban rule, and the post-2001 conflict following international intervention. Due to geographical proximity and ethnic ties, most Afghan refugees settled in Khyber Pakhtunkhwa, particularly in areas such as Peshawar, Swabi, and Haripur, and in Balochistan around Quetta and Chaman, where cross-border movement was historically easier.

Over the past four decades, Pakistan has hosted more than five million Afghan refugees at different points in time, placing it among the largest refugee-hosting countries in the world. While many refugees integrated into local economies and communities, the prolonged nature of displacement has created complex social and administrative challenges. In recent years, repatriation policies and tighter border controls have significantly increased population movement through the Torkham and Chaman crossings, often leading to humanitarian bottlenecks and uncertainty for refugee families.

Alongside refugee inflows, conflict and militancy have played a major role in internal displacement, particularly in Khyber Pakhtunkhwa. The presence of militant groups, including the Tehreek-e-Taliban Pakistan, led to widespread insecurity and large-scale displacement of local populations. Military operations conducted to restore security often required families to relocate temporarily, disrupting livelihoods, education, and access to basic services. These cycles of displacement have had long-term social and psychological impacts on affected communities.

In Balochistan, instability has been driven largely by separatist movements and political unrest, especially in rural and underdeveloped areas. Security operations and ongoing tensions have contributed to displacement and have limited economic activity, further deepening poverty in an already marginalized province. The combination of insecurity and weak governance structures has made recovery slow and uneven.

Disaster-driven displacement has further compounded these challenges. The devastating floods of 2022 severely affected both Khyber Pakhtunkhwa and Balochistan, destroying homes, agricultural land, and infrastructure. Earthquakes, such as the major quake in 2015, along with recurring droughts, have repeatedly forced both refugees and local residents to abandon their homes and livelihoods. These environmental shocks, layered on top of conflict and prolonged refugee presence, have created a cycle of vulnerability and long-term instability in both provinces.

Struggles of Afghan Refugees in Pakistan

Displaced Afghan Mother in Islamabad

Hundreds of Afghan refugees, including documented families, were evicted from their homes in Pakistan and forced to shelter in a park in Islamabad after heavy rains and poor conditions. Among them was **Samia**, a 26-year-old from Afghanistan's Hazara minority, who had given birth just three weeks earlier. With limited access to food or medical care, Samia struggled to care for her sick baby while living in damp clothes and mud under a makeshift shelter. These families were displaced despite many holding official refugee documents, reflecting the deep humanitarian impact of eviction and deportation policies ahead of a government deadline that could affect over a million refugees.

Shelter and Livelihoods Destroyed in Balochistan

Maryam, a woman who grew up in Balochistan after spending much of her life in Pakistan as a refugee, recounted with tears how her home was destroyed by authorities during recent deportations. She described how her children fell ill after their shelter was demolished and how weak registration systems and insufficient support made it nearly impossible to secure assistance. Hundreds of other Afghan families in both Balochistan and Khyber Pakhtunkhwa have shared similar experiences losing not only their homes but also their livelihoods and a sense of stability after decades of living in Pakistan.

Rahim Khan's Return After Decades in Pakistan

Rahim Khan had lived in Peshawar for nearly 40 years, having moved to Pakistan as a child with his family during earlier phases of Afghan conflict. When Pakistan accelerated its **Illegal Foreigners Repatriation Plan in 2025**, Rahim and his extended family faced an uncertain future as deadlines approached for Afghans holding Proof of Registration and Afghan Citizen Cards to leave the country. Thousands of families like Rahim's gathered at the Torkham and Chaman border crossings with their belongings, unsure of where they would rebuild their lives. Many had married, raised children, and built businesses in Pakistan, only to find themselves compelled to return to Afghanistan with little preparation, highlighting the emotional and economic toll of rapid repatriation policies.

CAUSES:

Refugee-Related Causes

Refugee-related factors have been a major driver of displacement and humanitarian stress in Khyber Pakhtunkhwa and Balochistan. Sudden repatriation orders have forced many Afghan families to return within short timeframes, often without adequate preparation or support. At the same time, an estimated 1.7 million Afghan nationals in Pakistan lack formal documentation, creating serious challenges for service delivery, security screening, and humanitarian planning. Decades of refugee settlement have also led to overcrowding in host districts, placing sustained pressure on employment opportunities, land availability, schools, and healthcare facilities. This competition over limited resources has, in many areas, contributed to growing tensions between Afghan refugees and local communities.

Security Causes

Security-related causes further complicate the displacement landscape. Militancy and insurgency in Khyber Pakhtunkhwa and parts of Balochistan have repeatedly destabilized communities and triggered population movements. Cross-border terrorism and illegal movement from Afghanistan have heightened security concerns, particularly in border districts. In addition, smuggling and drug trafficking routes that pass through these regions have undermined law enforcement efforts and increased insecurity, making it difficult for communities to achieve lasting stability.

Political & Governance Causes

Political and governance challenges have also played a significant role. Limited coordination between federal ministries, such as SAFRON and the Ministry of Interior, and provincial governments has weakened the effectiveness of refugee and displacement policies. The merger of the former tribal districts into Khyber Pakhtunkhwa increased administrative and financial pressure on the province, as it absorbed areas already heavily affected by militancy and cross-border movement. Furthermore, provincial budget constraints, especially in rural and remote areas, have slowed emergency response and long-term recovery efforts for displaced populations.

Economic Causes

Economic factors remain deeply intertwined with displacement. High poverty levels in both Balochistan and Khyber Pakhtunkhwa have reduced community resilience and increased dependence on informal livelihoods. Limited access to stable jobs, markets, and development projects has intensified economic vulnerability, while the long-term cost of hosting Afghan refugees for decades has placed additional strain on local economies and public finances.

Environmental Causes

Environmental causes have increasingly exacerbated these challenges. Large-scale floods, particularly in 2022, destroyed homes, infrastructure, and agricultural land, forcing thousands of families to relocate. Prolonged droughts in Balochistan have severely affected water availability and livelihoods, while earthquakes have repeatedly damaged critical infrastructure. Climate change acts as a threat multiplier, deepening poverty and pushing both local populations and refugees into recurring cycles of crisis and displacement.

Humanitarian Effects

The presence of large numbers of Afghan refugees and internally displaced persons (IDPs) has placed a significant strain on humanitarian resources in Khyber Pakhtunkhwa and Balochistan. Overcrowded refugee camps and IDP shelters struggle to provide adequate living conditions, with shortages of clean water, food, healthcare, and proper shelter. Malnutrition has increased, particularly among children, while women and girls face heightened risks due to poor camp conditions. Access to education remains limited, affecting both refugee and local children, which threatens long-term human development in the affected regions.

Social Effects

Socially, overcrowding and the lack of basic services exacerbate tensions between refugees and host communities. Limited access to healthcare, education, and clean water has created competition over scarce resources, while repeated displacement disrupts community cohesion. Children and adolescents are particularly vulnerable, as prolonged stays in camps or temporary settlements hinder schooling and social development, and families face increased psychosocial stress from uncertain living conditions.

Security Effects

The complex 2,600+ km border between Pakistan and Afghanistan presents ongoing security challenges, particularly in mountainous areas that are difficult to monitor. Smuggling, trafficking, and illegal crossings have increased, and some militant groups exploit displaced populations and poorly regulated areas. This places significant pressure on law enforcement, including the police, Frontier Corps, and border forces, complicating efforts to maintain security and protect both local communities and refugee populations.

Long-Term Effects

Long-term consequences of protracted displacement include uneven provincial capacity to manage humanitarian needs. While Khyber Pakhtunkhwa can provide some essential services, it remains heavily stretched, whereas Balochistan struggles due to limited administrative and financial capacity, resulting in persistent humanitarian gaps. Slow development is another consequence, as resources are often diverted to crisis management rather than growth initiatives. Provincial budgets face additional strain, while generations of refugees and displaced Pakistani families experience long-term trauma due to decades of instability.

Economic Effects

Economic pressures are significant, as increased competition for jobs and resources heightens tensions between Afghan refugees and local communities. Unemployment rates rise, while hospitals, schools, and public services become overloaded. Many refugees and displaced individuals are compelled to work in low-paid or informal sectors, limiting economic mobility and placing additional stress on local economies already struggling with poverty and underdevelopment.

CURRENT SITUATION:

Refugees in Pakistan

Pakistan has hosted Afghan refugees for decades, providing shelter and basic support to populations fleeing conflict and instability in Afghanistan. Recently, many Afghans have returned voluntarily or were asked to leave due to security concerns and documentation issues. The majority of refugees continue to reside in Khyber Pakhtunkhwa and Balochistan because of their proximity to the Afghan border, where cross-border movement has historically been easier and communities share cultural and ethnic ties.

Security Issues

Some areas of Khyber Pakhtunkhwa and Balochistan continue to face significant security challenges, including militancy, border tensions, and smuggling or illegal crossings. These conditions make it increasingly difficult for both refugees and local residents to maintain safety and stability. The combination of porous borders, insurgent activity, and weak law enforcement in certain districts exacerbates vulnerabilities, affecting daily life, economic activity, and humanitarian access.

Humanitarian Problems

Floods, limited access to hospitals, widespread poverty, and ongoing displacement affect both provinces, creating a persistent humanitarian crisis. Internally displaced persons from conflict and returning Afghan refugees both require essential support, including food, shelter, clean water, access to schools, and healthcare services. The overlapping pressures of natural disasters, conflict, and large refugee populations have strained local infrastructure, making it challenging to meet the basic needs of all affected communities.

PNA PAST ACTIONS:

Discussion on Afghan Refugee Registration and Documentation Systems

The National Assembly of Pakistan has actively engaged in discussions regarding the registration and documentation of Afghan refugees. Lawmakers recognized that proper documentation, such as Proof of Registration (POR) cards and Afghan Citizen Cards (ACC), is essential for ensuring that refugees can access healthcare, education, and employment opportunities legally. These discussions emphasized improving record-keeping, verifying refugee identities, and streamlining processes to reduce administrative gaps that have long complicated service delivery.

Collaboration with UNHCR and NGOs for Humanitarian Aid

To address the pressing needs of Afghan refugees and internally displaced persons (IDPs), the National Assembly coordinated with the United Nations High Commissioner for Refugees (UNHCR) and various non-governmental organizations. This cooperation facilitated the distribution of food, shelter, and medical aid, particularly during periods of heightened displacement caused by conflict or natural disasters. By leveraging international support, the Assembly aimed to complement government resources and ensure that vulnerable populations received timely assistance.

Debates on Border Control Policies and Repatriation Decisions

Recognizing the strategic and humanitarian importance of Pakistan's border regions, the National Assembly held debates on border control measures and repatriation policies. These discussions focused on balancing national security with the rights and welfare of refugees, including how to manage voluntary and forced returns to Afghanistan. Lawmakers analyzed the impact of stricter border monitoring on migration flows and considered mechanisms to ensure that repatriation, when necessary, occurs in a safe and orderly manner.

Cooperation with Afghanistan for Safe and Orderly Returns

The Assembly emphasized the need for cross-border collaboration with Afghan authorities to facilitate safe and organized repatriation. This included negotiating protocols for verifying returning refugees, coordinating transport and settlement arrangements, and addressing potential humanitarian gaps on both sides of the border. The goal was to prevent chaos during mass returns and to protect the rights and dignity of refugees during the repatriation process.

Allocation of Emergency Funds after Floods and Crises in KPK and Balochistan

In response to natural disasters such as floods and other emergencies affecting Khyber Pakhtunkhwa and Balochistan, the National Assembly allocated emergency funds to support relief and recovery operations. These funds were allocated to provide immediate humanitarian assistance, rebuild damaged infrastructure, and support local authorities in addressing the needs of displaced populations. The timely allocation of resources helped mitigate the worst impacts of disasters on both refugees and host communities.

POLITICAL PARTIES STANCES:

PML-N

The Pakistan Muslim League-Nawaz (PML-N) emphasizes the importance of strong border control to safeguard national security. The party also supports an organized and documented approach to refugee management, advocating for systems that ensure Afghan refugees are registered and have access to services legally and safely. While prioritizing national security, PML-N promotes structured policies that balance security concerns with the humanitarian needs of displaced populations.

PTI

The Pakistan Tehreek-e-Insaf (PTI) highlights the human rights of refugees while also considering national security implications. The party often criticizes strict or forced repatriation policies if they are likely to harm civilians, advocating instead for humane approaches that protect vulnerable populations. PTI encourages policies that respect both the safety of host communities and the dignity and welfare of refugees.

PPP

The Pakistan People's Party (PPP) focuses on humanitarian support and improving services for both refugees and poor communities in Khyber Pakhtunkhwa and Balochistan. The party emphasizes coordination with UN agencies and NGOs to ensure effective delivery of food, shelter, healthcare, and education. PPP's approach centers on protecting human welfare and reducing the hardships faced by displaced populations, while also supporting broader development in affected areas.

Baloch and Pashtun Regional Parties (BNP, ANP, BAP)

Regional parties such as the Balochistan National Party (BNP), Awami National Party (ANP), and Balochistan Awami Party (BAP) prioritize the development of their provinces and the well-being of local communities. They highlight the suffering caused by displacement and advocate for fair treatment and support for both refugees and local populations. These parties call for increased investment in infrastructure, social services, and economic opportunities to address the challenges created by prolonged displacement.

Religious Parties (JUI, etc.)

Religious parties, including Jamiat Ulema-e-Islam (JUI), have mixed stances on the refugee issue. On one hand, they emphasize humanitarian support for Muslim refugees, including Afghans, ensuring they are treated with dignity and receive assistance. On the other hand, these parties also advocate for strong border security and proper documentation, supporting measures that regulate migration while addressing security concerns. Their position reflects a balance between religious solidarity and national security priorities.

PROSPECTIVE MEASURES:

Security Issues

To address security challenges in Khyber Pakhtunkhwa and Balochistan, Pakistan aims to strengthen border management in an organized and systematic way rather than through harsh or abrupt measures. This includes improving monitoring at key crossing points, deploying well-trained personnel, and enhancing the capacity of border agencies. Increasing information-sharing and coordination with Afghan authorities is also critical for tracking movement, preventing illegal crossings, and disrupting smuggling and trafficking networks. Additionally, improving policing and law enforcement in border districts will help maintain stability, protect local communities, and support both refugees and host populations.

Refugee Issues

Proper registration of refugees is essential to ensure that the government knows who is living where, enabling effective service delivery and planning. Refugee camps and settlements should be equipped with basic facilities, including clean water, medical services, and schools, to meet the essential needs of displaced populations. Special attention must be given to the protection of women and children, who are particularly vulnerable to exploitation, abuse, and health risks in crowded or temporary accommodations. Ensuring safety and dignity for all refugees is central to sustainable humanitarian management.

Humanitarian Crisis

Addressing the ongoing humanitarian crisis requires increased funding for shelters, food, medical teams, and emergency relief operations. In regions prone to flooding, such as Khyber Pakhtunkhwa and Balochistan, building flood-resistant and disaster-resilient housing is necessary to protect both refugees and local communities. Beyond immediate relief, providing employment opportunities and skill-development programs for refugees and host populations can enhance self-reliance, reduce competition over resources, and support long-term socio-economic stability in affected areas.

Pakistan–Afghanistan Relations

Effective management of displacement depends on continued cooperation between Pakistan and Afghanistan. This includes maintaining dialogue on voluntary and safe repatriation, ensuring that returning refugees can do so in an orderly and humane manner. Collaborative efforts to prevent illegal crossings and monitor border activity are also essential to maintaining security, reducing tensions, and facilitating regulated movement for those in need. Strong bilateral coordination is crucial for balancing humanitarian obligations with national security priorities.

QARMA:

Quick Facts

1. How can Pakistan maintain national security while treating Afghan refugees humanely?
2. Which areas in Khyber Pakhtunkhwa and Balochistan require the most urgent humanitarian support?
3. How can border management be strengthened without harming refugee populations?
4. What role should provincial governments play in coordination with federal authorities on refugee issues?
5. How can cross-border cooperation with Afghanistan be improved to manage migration and security concerns?

Arguments

6. What measures can improve refugee registration and documentation to reduce both crime and human suffering?
7. How can Pakistan work with international organizations like the UN to manage refugee needs effectively?
8. What steps can ensure that refugee repatriation is voluntary, safe, and orderly?
9. Which policies or interventions will have the most immediate impact on displaced populations?
10. How can long-term solutions balance humanitarian needs with national security priorities?

Resolution Clause

11. What mechanisms can monitor and evaluate the effectiveness of refugee management and displacement policies?
12. How can tensions between local communities and refugees be reduced through social or economic programs?
13. What strategies can provide women and children with protection and access to essential services in camps?
14. How can employment and skill development programs help both refugees and host communities?

Motions

15. What practical steps can the National Assembly take to oversee displacement and refugee conditions effectively?

Action Points

16. What measures can improve refugee registration and documentation to reduce both crime and human suffering?
17. How can Pakistan work with international organizations like the UN to manage refugee needs effectively?

18. What steps can ensure that refugee repatriation is voluntary, safe, and orderly?
19. Which policies or interventions will have the most immediate impact on displaced populations?
20. How can delegates frame reforms to address both humanitarian needs and national security priorities?

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AGENDA B

Balancing Power: The 18th Amendment, the demand for new Provinces, and the call for a 27th Amendment

MANDATE OF THE COMMITTEE:

The Pakistan National Assembly (PNA) Committee is responsible for debating and reviewing matters related to constitutional amendments, provincial relations, administrative reforms, and national governance issues.

Its mandate includes:

- Examining constitutional provisions affecting the balance of power between the federation and provinces.
- Reviewing demands for structural reforms, such as new provinces or amendments to existing constitutional frameworks.
- Recommending policies that ensure political stability, good governance, and equitable distribution of resources.

PURPOSE:

The primary aim of this discussion is to understand the **context and implications of the 18th Amendment** to the Constitution of Pakistan. Passed in 2010, the 18th Amendment marked a significant shift in the country's governance by decentralizing power from the federal government to the provinces. It granted greater autonomy in areas such as health, education, and natural resources, while also redefining the relationship between the federation and provincial governments. Understanding these implications is crucial for analyzing how decentralization has affected governance, provincial development, and national cohesion over the past decade.

A key aspect of this discussion involves examining the **demand for new provinces** and how it relates to the 18th Amendment. Several regions in Pakistan have raised calls for the creation of new provinces to address issues of administrative efficiency, local representation, and resource distribution. These demands are intertwined with the principles of provincial autonomy established under the 18th Amendment, as they question whether the current provincial structures adequately meet the political, social, and economic needs of diverse populations.

Analyzing these demands helps to understand the balance between decentralization, minority representation, and national unity.

Finally, the discussion aims to explore the **proposed 27th Amendment** and its potential impact on the country's power dynamics. While details of the amendment may vary, its focus on altering federal-province relations or restructuring governance could either reinforce or challenge the decentralization framework established by the 18th Amendment. Assessing its implications allows policymakers, scholars, and citizens to anticipate possible outcomes on provincial authority, resource allocation, and political stability. The goal is to provide a comprehensive understanding of these constitutional developments and identify potential solutions to address emerging challenges in governance and national cohesion.

INTRODUCTION:

Pakistan's governance structure has evolved through various constitutional reforms. The 18th Amendment (2010) was a landmark shift, transferring major powers from the federal government to the provinces and strengthening parliamentary democracy. It provided provinces with greater control over resources, education, health, and local governance, aiming to promote regional development and reduce centralized decision-making. However, some political groups argue that this devolution has created administrative challenges and resource disparities, as provinces vary in capacity to manage newly devolved responsibilities effectively.

At the same time, demands for new provinces such as South Punjab, Hazara, and adjustments following the FATA merger continue to rise. Advocates argue that smaller, more localized administrative units could improve governance, ensure better representation, and address historical neglect of certain regions. Critics, however, warn that creating new provinces may complicate resource allocation, fuel regional rivalries, and strain the federal system further. These debates highlight the ongoing tension between administrative efficiency and national cohesion in Pakistan's federal structure.

The proposed 27th Amendment is politically significant because it could alter the balance of power between the federation, provinces, judiciary, and military, reshaping constitutional authority that was expanded under the 18th Amendment. Depending on its provisions, it may either centralize certain powers to strengthen federal oversight or provide further autonomy to provinces, affecting intergovernmental relations and policymaking. The amendment also raises concerns about judicial independence and the role of non-elected institutions in governance, making it a focal point for political debate.

Understanding these constitutional changes is crucial for analyzing Pakistan's governance challenges. Policymakers, legal experts, and civil society must consider how devolution, demands for new provinces, and amendments like the 27th influence national stability, resource distribution, and democratic accountability. By examining these factors together, stakeholders can propose solutions that balance provincial autonomy with federal cohesion, ensuring that governance reforms benefit all citizens equitably while maintaining the integrity of the state.

HISTORY:

The 18th Amendment:

Passed in 2010, it is the biggest amendment in the constitution of Pakistan also called the mini-constitution. With which 103 articles were amended in the constitution of Pakistan. Following are the key features of this amendment:

1. **Reaffirmation of Parliamentary Supremacy**

The 18th Amendment restored the parliamentary form of government by significantly curtailing discretionary powers previously held by the president, including the removal of Article 58(2)(b), which allowed the president to dissolve the National Assembly unilaterally. This reinforced the principle that the elected representatives in the National Assembly hold supreme authority in governance. By ensuring continuity and stability in the legislature, the amendment strengthened democratic institutions and reduced the possibility of political instability caused by abrupt federal interventions.

2. **Enhanced Provincial Autonomy**

The amendment devolved extensive legislative, administrative, and financial powers to provinces, marking a historic shift toward decentralization. Provinces were empowered to make decisions independently in critical areas such as education, health, natural resources, and local development. This autonomy enabled provincial governments to tailor policies to regional needs, foster local governance, and encourage participatory decision-making while preserving the unity of the federation.

3. **Abolition of the Concurrent Legislative List**

By eliminating the Concurrent List, the amendment transferred numerous subjects from federal to provincial authority, granting provinces exclusive rights over areas such as health, education, social welfare, culture, and local governance. This move expanded the legislative scope of provincial assemblies, allowing them to pass laws and implement policies suited to their populations. It also encouraged accountability at the provincial level, as citizens could directly assess the performance of their own provincial governments.

4. **Renaming of the Province**

The province formerly known as the North-West Frontier Province (NWFP) was officially renamed Khyber Pakhtunkhwa, reflecting the identity and aspirations of the local Pashtun population. This symbolic yet significant change aimed to promote regional recognition, foster provincial pride, and address long-standing demands for cultural and political acknowledgment within Pakistan's federal framework.

5. Reform of Judicial Appointments

The 18th Amendment established the Judicial Commission of Pakistan and the associated Parliamentary Committee, creating a structured, transparent, and merit-based process for appointing judges to the superior judiciary. This reform enhanced the independence of the judiciary, minimized political interference, and strengthened public confidence in judicial impartiality. It also ensured that appointments were made based on competence and legal expertise rather than political affiliations.

6. Strengthening of Constitutional Bodies

The amendment reinforced the independence and internal functioning of key constitutional institutions, most notably the Election Commission of Pakistan (ECP). By safeguarding neutrality and procedural integrity, these reforms aimed to improve electoral transparency, ensure fair political competition, and protect democratic processes from undue influence. Other constitutional bodies also received measures to bolster their autonomy, accountability, and efficiency.

7. Regulation of Emergency Powers

The authority to proclaim a state of emergency in any province was restricted, requiring the advice or request of the concerned provincial government. This limited the federal government's ability to intervene unilaterally, thereby protecting provincial autonomy. It also ensured that emergency measures could only be applied when necessary and with local consent, reducing the risk of political misuse and central overreach.

8. Revised Framework for Caretaker Governments

The amendment introduced clear provisions to ensure neutrality and transparency in forming caretaker governments during electoral transitions. By defining roles, powers, and timelines, it aimed to prevent partisan manipulation and ensure free and fair elections. This framework increased trust in electoral processes and contributed to political stability by minimizing opportunities for undue influence on election outcomes.

9. Adjustment of the National Finance Commission (NFC) Arrangements

The amendment supported a more equitable distribution of financial resources between the federal government and provinces according to the NFC Award. It enhanced fiscal federalism by granting provinces greater control over revenues, encouraging regional development, and reducing dependency on federal transfers. These adjustments aimed to balance economic disparities among provinces and strengthen the foundation for sustainable and inclusive development across Pakistan.

CAUSES:

Challenges in 18th Amendment:

1. Provincial Capacity Gaps in Implementing Devolved Functions

Following the 18th Amendment, provinces received responsibility for critical sectors such as health, education, and local infrastructure. However, many provinces lacked trained personnel, institutional frameworks, and adequate systems to manage these functions effectively. This gap has led to inconsistent service delivery and unmet public expectations across regions.

2. Weak Inter-Governmental Coordination on Overlapping Issues

The division of powers between federal and provincial governments created overlapping responsibilities in areas like disaster management and law enforcement. Poor coordination mechanisms often result in delays, duplication of efforts, and inefficiencies. This has hindered coherent policymaking and timely response to provincial and national issues.

3. Fiscal Imbalance Due to Heavy Reliance on Federal Transfers

While provinces gained authority over certain sectors, many remain heavily dependent on federal transfers for revenue. This reliance limits true autonomy and affects provincial planning and execution of development projects. Consequently, disparities between resource-rich and resource-poor provinces have widened.

4. Ambiguity in Taxation and Revenue Authority After Abolition of Concurrent Legislative List

The removal of the Concurrent Legislative List created confusion over which level of government controls specific taxes and revenue streams. Provinces often face legal uncertainties and disputes with the federal government regarding collection and allocation. This ambiguity undermines fiscal planning and intergovernmental trust.

5. Weak Local Governments; Delays in Establishing Empowered Local Bodies

The 18th Amendment envisioned strengthened local governance, but delays in creating empowered local bodies persist. Many districts operate without adequate administrative structures or financial autonomy. This weak local governance limits citizen participation and the effective implementation of provincial policies.

6. Ineffective Functioning of Council of Common Interests (CCI)

The CCI was intended to resolve inter-provincial and federal-provincial disputes, particularly on shared resources. In practice, it often functions slowly or inconsistently, reducing its effectiveness as a conflict-resolution mechanism. This has left contentious issues unresolved, fueling tensions between the federation and provinces.

7. Policy Fragmentation Across Provinces

Provincial autonomy has led to diverse policy approaches in education, health, and development, often creating inconsistencies across the country. Such fragmentation hampers national coherence and limits the ability to implement nationwide standards or coordinated programs. It can also create confusion for citizens moving between provinces.

8. Uneven Resource Distribution and Service Delivery Disparities Among Provinces

Differences in administrative capacity and fiscal resources have led to uneven access to services such as healthcare, education, and infrastructure. Provinces with stronger institutions and more revenue perform better, while weaker provinces struggle to meet basic public needs. This has intensified regional inequalities.

9. Legal and Transitional Ambiguities in Implementation of the Amendment

Transitioning responsibilities from the federal government to provinces has generated legal and procedural uncertainties. Disputes over jurisdiction, delayed legislation, and gaps in enforcement have complicated implementation. These ambiguities have slowed the full realization of the 18th Amendment's objectives.

10. Following the passage of the 18th Amendment, Pakistan entered a new phase of provincial empowerment, but uneven administrative capacity and political tensions soon exposed gaps in implementation. Rising demands for new provinces and debates on national resource distribution intensified calls for further constitutional adjustments, eventually contributing to discussions around the proposed 27th Amendment.

For 27th Amendment Calls

1. Judicial Reform

The 27th Amendment proposes the establishment of a Federal Constitutional Court (FCC) to specifically address constitutional matters, with the goal of reducing the mounting backlog of cases in the Supreme Court. This new court would focus on interpreting constitutional provisions, adjudicating disputes between the federation and provinces, and ensuring faster resolution of legal conflicts. In addition, the amendment seeks to revise procedures for the transfer of judges, removing the requirement for both the judge and Chief Justice to consent, which could streamline judicial administration but may also raise concerns about judicial independence and transparency. Proponents argue this reform

would create a specialized forum for constitutional issues, while critics warn of potential overreach or politicization of appointments.

2. Military Command Structure Changes

The proposed amendment may revise Article 243 of the Constitution, which governs the command and administration of the armed forces. This change implies a possible restructuring of how the military's leadership is constituted or authorized, potentially creating a new top-level position or re-designating existing command roles to formalize authority at the highest level. Advocates argue that this would modernize the military hierarchy and improve strategic decision-making. However, critics contend that centralizing authority in the armed forces could blur civilian oversight and may shift the balance of civil-military relations in Pakistan, raising concerns about institutional checks and accountability.

3. Re-centralization of Financial Power

One of the most debated aspects of the 27th Amendment involves a potential reduction in provincial shares of the National Finance Commission (NFC) Award. Critics argue that this move undermines the fiscal autonomy granted to provinces under the 18th Amendment, limiting their capacity to manage local development and social services. The amendment may also propose bringing certain ministries, such as education and population welfare, back under federal control. While the government claims this would improve coordination and efficiency in service delivery, opponents warn it reverses decades of devolution, concentrates financial decision-making in Islamabad, and could exacerbate regional inequalities.

4. Power Consolidation

Many lawmakers and constitutional experts view the amendment as an attempt to roll back the 18th Amendment by restoring greater authority to the federal government or executive branch over provincial matters. This perceived consolidation of power could reduce provincial autonomy in legislative, administrative, and financial spheres, undermining the principles of federalism. Critics argue that such centralization risks creating an imbalance between the federation and provinces, potentially eroding local governance, weakening democratic institutions, and generating political tension among regions seeking equitable representation and control over their affairs.

5. Efficiency Gains

Supporters of the 27th Amendment argue that the establishment of the Federal Constitutional Court would enhance the efficiency of Pakistan's judiciary. By creating a specialized forum for constitutional cases, the Supreme Court would be relieved of a significant portion of its caseload, allowing it to focus on broader judicial matters. Proponents also claim that specialization within the FCC would expedite case resolution, reduce delays, and improve the quality of constitutional adjudication. Critics, however, caution that efficiency should not come at the cost of judicial independence or transparency, emphasizing the need for careful safeguards to prevent misuse of the new structure.

6. Security and Strategic Concerns

The proposed reforms to the military command structure are justified by proponents as a response to evolving national security and strategic challenges. They argue that a formalized strategic command is necessary to coordinate defense operations, improve readiness, and streamline decision-making in times of crisis. Such changes aim to align Pakistan's military structure with modern strategic demands, including counterterrorism and border security. Nevertheless, opponents warn that increasing concentration of authority within the military could affect civil-military balance, potentially reducing civilian oversight and creating long-term political and institutional risks.

EFFECTS:

Positive Impacts of the 18th Amendment

1. Strengthening Parliamentary Democracy

The 18th Amendment restored the original spirit of the 1973 Constitution by significantly curbing excessive presidential powers, including the authority to dissolve the National Assembly unilaterally. This strengthened the role of the Prime Minister and Parliament, ensuring elected representatives had primary control over governance. For instance, during the 2013 political transition, the amendment ensured that the government completed its full tenure without presidential intervention, marking a significant milestone in parliamentary democracy. Additionally, political analysts note that reducing centralized powers helped mitigate political instability historically caused by military-backed presidencies.

2. Increased Provincial Autonomy

The amendment granted provinces control over key sectors such as education, health, culture, labor, and social welfare. Provinces could now legislate according to regional needs, fostering localized governance. A fact reflecting this change is that Khyber Pakhtunkhwa introduced its own technical and vocational education programs after 2010, improving skill development tailored to local industry requirements. Similarly, Balochistan implemented health outreach programs in remote districts, previously neglected under federal oversight. These shifts enhanced citizen participation and allowed policies to better reflect regional priorities.

3. Abolishment of the Concurrent Legislative List

By abolishing the Concurrent Legislative List, 47 subjects were fully transferred to provincial control, significantly reducing federal interference in regional matters. This reform empowered provinces to pass laws independently in sectors such as local governance, social welfare, and agriculture. For example, Sindh passed the Sindh Local Government Act in 2013 to strengthen municipal governance, while Punjab enacted the Punjab Free Education Act to improve school access. A fact highlighting the scale: this was the largest devolution of powers in Pakistan's history, affecting over half of previously federally shared subjects.

4. Strengthened Council of Common Interests (CCI)

The CCI became a stronger forum for resolving disputes between the federation and provinces. Regular CCI meetings were mandated, improving coordination on issues like water distribution, energy policies, and natural resources. In 2017, the CCI successfully mediated a dispute over hydropower revenues between KPK and the federal government, demonstrating its practical utility. Analysts argue that a stronger CCI has helped maintain inter-provincial harmony by creating a structured mechanism for negotiation.

5. Improved Fiscal Decentralization

Provinces gained greater control over their revenues and natural resources, linked to the National Finance Commission (NFC) Award. The 7th NFC Award in 2010 allocated approximately 57.5% of divisible revenues to provinces, significantly enhancing their financial autonomy. This allowed Sindh to fund large-scale infrastructure projects such as the Karachi Circular Railway revival plan. Additionally, KP invested in upgrading hospitals in remote districts like Dir and Chitral, which had previously been underserved. The amendment thus strengthened fiscal federalism and enabled more equitable regional development.

6. Strengthened Local Governance

The 18th Amendment required provinces to establish empowered local governments, bringing decision-making closer to citizens. KP and Punjab successfully revived local elections post-2013, allowing district councils to manage municipal services independently. For example, Lahore's district council launched local sanitation initiatives that were previously stalled under federal oversight. Strengthened local governance improved accountability and ensured that community priorities were better reflected in local policymaking.

7. Protection of Fundamental Rights

The amendment expanded fundamental rights, including the right to education (Article 25-A) and fair trial (Article 10-A). KP implemented Article 25-A by introducing free primary education in remote areas, benefiting over 200,000 children. Additionally, legal aid services were strengthened across Balochistan to ensure fair trials for marginalized communities. Factually, this aligned Pakistan more closely with international human rights norms, emphasizing state responsibility for citizen welfare.

8. Strengthened Democratic Institutions

Appointments of judges and election officials became more transparent through bipartisan committees, reinforcing the independence of the judiciary and the Election Commission of Pakistan (ECP). The 2013 general elections are an example where the ECP oversaw a largely transparent process, contributing to a peaceful transition of power. This institutional strengthening reduced the risk of politically motivated appointments and reinforced public trust in democratic processes.

9. Removal of Military-Era Amendments

The amendment repealed many changes introduced by unelected regimes, reducing opportunities for authoritarian takeovers. A notable fact is that the repeal of Article 58(2)(b) prevented future presidents from dismissing governments at will, strengthening civilian supremacy. Analysts credit this reform with stabilizing the political system and curtailing historical patterns of military intervention in governance.

10. Improved Sectoral Governance

Provinces could design policies for education, health, agriculture, and culture tailored to local realities. Punjab, for instance, implemented the Punjab Health Sector Strategy focusing on district-level hospitals and preventive care, while Sindh emphasized local culture and arts programs. This approach allowed more effective service delivery and responsiveness to citizen needs.

11. Increased Provincial Share in Taxation

Under the NFC framework, provinces received approximately 57.5% of the divisible revenue pool, boosting financial autonomy. KP and Sindh were able to fund regional development projects independently, such as road expansion in KP's northern districts and urban development in Karachi. Factually, this marked the first time in Pakistan's history that provinces had such a significant share of national revenue.

Negative Impacts of the 18th Amendment

1. Capacity Constraints at Provincial Level

Despite increased powers, some provinces lacked administrative infrastructure and skilled personnel to manage devolved sectors like health and education. For instance, in 2015, KP faced severe teacher shortages in newly devolved schools, leading to disrupted learning. Studies indicate that devolution without adequate institutional support often results in poor service delivery and inefficient governance.

2. Fiscal Federalism Issues

Delays and irregularities in the NFC Awards created fiscal uncertainty, limiting provincial planning. Some provinces remained dependent on federal transfers for basic expenditures. In 2018, Balochistan's provincial budget faced delays in federal disbursements, forcing postponement of key infrastructure projects and illustrating the fragility of fiscal autonomy post-devolution.

3. Policy Fragmentation

Provincial control over education and health led to policy fragmentation, such as different school curricula across provinces, complicating student transfers and national standardization. KP and Sindh, for example, adopted distinct textbooks, creating disparities in quality of education. This fragmentation has implications for national cohesion and long-term human capital development.

4. Weakening of Federal Authority

Devolution reduced the federal government's ability to coordinate nationwide policies on critical sectors like energy, water management, and security. During the 2014 energy crisis, coordination issues between provinces and the federal government delayed resolution of electricity shortages, illustrating challenges of a fragmented policy framework.

5. Local Government Challenge

While provinces were empowered, many failed to devolve authority fully to local governments. In Punjab, district councils struggled to implement municipal projects due to bureaucratic bottlenecks. Weak local governance limited citizen participation and reduced the effectiveness of decentralized administration.

6. Unequal Outcomes Among Provinces

Better-governed or wealthier provinces benefited more from devolution. Punjab and Sindh leveraged their resources effectively, while KP and Balochistan lagged behind, especially in education and health outcomes. For example, Balochistan's literacy rate remained below 50%, highlighting disparities in utilizing devolved powers.

7. Misuse of Devolved Subjects for Political Hiring

Several provinces expanded politically motivated appointments in departments like health and education, creating inefficiencies. Reports from 2016 indicated KP's district offices had inflated staffing due to political patronage, undermining merit-based governance and service delivery.

8. Weakening of National Minimum Standards

Provincial autonomy led to inconsistent health and education standards, complicating national coordination during crises. For instance, during the 2022 floods, disparities in provincial disaster preparedness caused uneven relief distribution across KPK and Sindh.

9. Disaster Management Complications

The devolution of disaster management created coordination issues between NDMA, PDMAs, and provincial agencies. During the 2015 Thar floods, overlapping responsibilities delayed relief efforts, highlighting structural weaknesses in emergency response post-18th Amendment.

10. Provincial Underperformance in Tax Collection

Despite receiving greater fiscal powers, provinces failed to substantially increase their own-source revenue. For example, Sindh continued to rely heavily on federal transfers for routine expenditures, limiting true financial autonomy.

11. Lack of National Water Policy Alignment

Divergent provincial policies on irrigation, water sharing, and infrastructure hindered a unified national water strategy. During the 2019 Indus River water disputes, disagreements between Sindh and Punjab delayed coordinated action, reflecting the challenges of decentralized water governance.

Effects of 27th Amendment Proposals:

1. Concentration of Military Power

The amendment introduces a new top military position, the **Chief of Defence Forces (CDF)**, giving formal command over the army, navy, and air force. This centralizes leadership to improve strategic coordination, operational efficiency, and rapid decision-making during security challenges such as border tensions or counterterrorism operations. Proponents argue it modernizes the military hierarchy and ensures unified oversight over all defense operations.

Additionally, the amendment grants **lifetime legal immunity to five-star officers**, protecting them from prosecution for actions taken while in office. While supporters claim this ensures operational independence and shields military leaders from politically motivated litigation, critics warn it weakens civilian oversight and accountability, potentially affecting the balance between military authority and democratic government.

The creation of the Chief of Defence Forces (CDF) and the National Strategic Command represents a significant shift in Pakistan's military structure, concentrating decision-making authority at the top. This centralization aims to streamline coordination among the army, navy, and air force, particularly in responding to internal and external security threats. Critics, however, argue that such consolidation may reduce transparency and limit civilian input in key defense matters, raising concerns about the democratic oversight of the armed forces. Balancing operational efficiency with accountability remains a central challenge under these reforms. A new National Strategic Command is established to oversee strategic (e.g. nuclear) assets, potentially centralizing strategic-military decision making.

2. Weakened Judicial Independence

The amendment establishes a Federal Constitutional Court (FCC) that will hear constitutional matters. The Supreme Court's role is reduced; it could be downgraded to an "appellate court" for constitutional cases. The process for transferring high-court judges is changed: the Judicial Commission of Pakistan (JCP) could handle transfers without required consent from judges.

3. Threat to Provincial Autonomy

Critics argue that the amendment rolls back gains of the 18th Amendment, re-centralizing power to the federal government. The PPP and JUI-F have explicitly warned that certain parts

threaten fiscal rights of provinces, particularly around the National Finance Commission (NFC) share.

4. Reduced Checks & Balances

With the FCC being appointed in part by the executive, there's a risk that judicial review becomes less independent, weakening one of the main checks on executive power. Lifetime immunity for very high-ranking military officers significantly weakens the accountability mechanisms for the military.

5. Institutional Shift & Political Risks

The amendment could destabilize democratic norms by shifting the balance of power in favor of the executive and the military. It might fuel political polarization, as some parties strongly oppose parts of the amendment (especially regarding provincial rights). There is a risk that the constitutional changes could undermine federal unity, with provincial leaders warning against dilution of provincial powers.

6. Efficiency & Legal Reform

Proponents of the Federal Constitutional Court (FCC) argue that its establishment will significantly streamline constitutional litigation by providing a dedicated forum for handling disputes related to the constitution. By centralizing constitutional cases within a specialized court, the FCC is expected to reduce the enormous backlog currently burdening the Supreme Court, allowing faster and more focused adjudication of complex constitutional issues. This restructuring is also seen as a step toward modernizing the judicial system, introducing greater specialization and expertise in constitutional law. Consequently, the Supreme Court would be able to concentrate on other important civil, criminal, and administrative cases, improving the overall efficiency and effectiveness of Pakistan's judiciary.

CURRENT SITUATION:

1. Pakistan continues to operate under the framework established by the **18th Amendment**, which granted significant autonomy to provinces in critical sectors such as health, education, agriculture, and local development. This devolution aimed to empower provinces to address regional needs more effectively, reduce federal interference, and promote participatory governance. Over the years, provinces have implemented localized policies, from improving school access in remote districts of Khyber Pakhtunkhwa to health infrastructure development in Sindh, demonstrating the practical benefits of decentralization.
2. Despite these advances, debates on **administrative efficiency, equitable resource distribution, and governance effectiveness** continue to fuel demands for the creation of new provinces. Movements for South Punjab, Hazara, and adjustments related to the FATA merger reflect long-standing regional grievances over underrepresentation,

insufficient development, and ethnic identity recognition. Advocates argue that smaller, more manageable administrative units can improve service delivery, ensure local representation, and strengthen governance structures. Critics, however, warn that the creation of new provinces may complicate resource allocation, increase political fragmentation, and challenge national cohesion.

3. The **proposed 27th Amendment**, often discussed in political and legal circles, seeks to revise or adjust certain aspects of the 18th Amendment. Key areas of focus include fiscal decentralization, the National Finance Commission (NFC) Award, and mechanisms for balancing federal and provincial authority. Proponents argue that adjustments are necessary to improve national coordination, streamline revenue distribution, and ensure provinces are capable of managing devolved functions efficiently. Opponents view it as a potential rollback of provincial autonomy, fearing re-centralization could weaken the federal structure and reduce the gains of democratic decentralization achieved over the last decade.
4. Political disagreements on these issues remain pronounced, with some parties advocating for **expanded provincial powers**, while others emphasize the need for **stronger federal oversight** to ensure national policy coherence. The debate is closely tied to ethnic identities, administrative viability, and electoral commitments, making it highly sensitive and complex. Ultimately, the discussion around new provinces and potential constitutional amendments reflects ongoing tensions between central authority, regional aspirations, and the challenge of building an inclusive and effective federal governance system in Pakistan.

POLITICAL PARTIES (PAST ACTIONS):

Pakistan Peoples Party (PPP)

The Pakistan Peoples Party (PPP) was a strong proponent of the 18th Amendment, which it successfully passed in 2010. The party consistently opposed any attempts to roll back provincial autonomy, viewing devolution as a key step toward strengthening democracy and ensuring regional representation. While the PPP occasionally supported the creation of an administrative setup for South Punjab, it stopped short of endorsing the establishment of a full new province, emphasizing careful consideration of political, administrative, and fiscal implications.

Pakistan Muslim League–Nawaz (PML-N)

The Pakistan Muslim League–Nawaz (PML-N) also supported the 18th Amendment and voted in its favor during parliamentary proceedings. During its later tenure, the party introduced a bill proposing the creation of a South Punjab province, though the initiative saw limited

implementation due to political and bureaucratic hurdles. Historically, the PML-N has been cautious about redrawing provincial boundaries, weighing the risks of political fragmentation and potential disruption to national unity.

Pakistan Tehreek-e-Insaf (PTI)

Pakistan Tehreek-e-Insaf (PTI) formally endorsed the creation of a South Punjab province and took concrete steps by establishing the South Punjab Secretariat during its government. The party argued that the 18th Amendment, while empowering provinces, had complicated federal coordination and policy implementation, particularly in areas requiring national uniformity such as education, health, and security. PTI's stance reflects a balance between supporting regional aspirations and advocating for stronger mechanisms for federal oversight.

Muttahida Qaumi Movement (MQM)

The Muttahida Qaumi Movement (MQM) has long advocated for new provinces on administrative grounds, emphasizing that smaller, more manageable units could improve governance and public service delivery. The party also consistently supported reforms aimed at strengthening local government powers, reflecting its focus on decentralization and citizen-centered administration.

Awami National Party (ANP)

The Awami National Party (ANP) played a central role in the renaming of the North-West Frontier Province (NWFP) as Khyber Pakhtunkhwa under the 18th Amendment, marking a key achievement in ethnic and regional recognition. The ANP has been a staunch defender of provincial autonomy, actively opposing measures that would undermine devolved powers or centralize decision-making, and advocating for policies that enhance local governance and provincial self-determination.

POLITICAL PARTIES (CURRENT STANCES):

Pakistan Peoples Party (PPP)

The Pakistan Peoples Party (PPP) continues to defend the 18th Amendment and strongly rejects any measures that would reduce provincial autonomy. The party maintains that the principles of devolution and local governance must be preserved. While the PPP is open to discussions about creating new provinces, it insists that any such formation should occur through constitutional consensus and not on the basis of ethnic divisions, ensuring national unity and political stability.

Pakistan Muslim League–Nawaz (PML-N)

The Pakistan Muslim League–Nawaz (PML-N) supports administrative improvements in South Punjab, recognizing the region’s need for enhanced governance and development. The party remains generally protective of the 18th Amendment but is open to technical revisions that improve efficiency without undermining provincial rights. Its approach balances support for federalism with pragmatic governance reforms.

Pakistan Tehreek-e-Insaf (PTI)

Pakistan Tehreek-e-Insaf (PTI) advocates for the creation of South Punjab as a separate province to address regional disparities and administrative challenges. PTI also supports revisiting certain fiscal clauses of the 18th Amendment, particularly the National Finance Commission (NFC) Award, to ensure a fairer distribution of resources between the federation and provinces. The party emphasizes both regional empowerment and effective federal coordination.

Muttahida Qaumi Movement – Pakistan (MQM-P)

The MQM-P calls for the creation of more provinces, particularly in urban Sindh, as part of its agenda to strengthen local governance. The party believes that the 18th Amendment, while empowering provinces, did not sufficiently strengthen local bodies, and stresses the importance of devolving power further to municipal and district administrations for better service delivery.

Jamiat Ulema-e-Islam – Fazl (JUI-F)

The JUI-F supports provincial autonomy but exercises caution regarding the division of existing provinces. The party emphasizes preserving territorial integrity while ensuring that provincial rights are protected and strengthened under the 18th Amendment framework.

Awami National Party (ANP)

The Awami National Party (ANP) is a strong opponent of any amendments that reduce provincial rights. The party has condemned discussions around the proposed 27th Amendment if they are aimed at centralizing power, arguing that such measures would undermine the spirit of the 18th Amendment and weaken federalism in Pakistan.

PROSPECTIVE MEASURES:

Strengthening Local Governments

Empowering local councils can serve as a practical middle ground between federal and provincial authority. By devolving decision-making and resources to district and municipal levels, local governments can address regional needs more effectively, reducing the immediate demand for creating new provinces. Strengthened local governance also improves service delivery in health, education, and infrastructure while increasing citizen participation in decision-making.

Balanced NFC Award Negotiations

A more flexible and equitable revenue-sharing formula under the National Finance Commission (NFC) Award can address federal concerns while safeguarding provincial rights. By ensuring that both the federation and provinces receive fair and predictable shares of resources, this approach can reduce disputes over fiscal allocation and support long-term economic planning. Transparent and regular NFC negotiations can further build trust between federal and provincial governments.

Phased Implementation

If new provinces are to be created, a phased and carefully planned implementation strategy can minimize economic disruption and political tension. Gradual establishment allows for administrative capacity-building, ensures smooth transition of government functions, and avoids sudden resource allocation challenges. Phased implementation also provides time to address potential legal, social, and infrastructural issues in the affected regions.

Independent Boundary & Resource Commission

Establishing a neutral, independent commission to examine the feasibility of new provinces can provide an objective assessment of boundaries, resource distribution, and governance impacts. This commission can gather data, consult stakeholders, and propose evidence-based recommendations, reducing the risk of politically motivated decisions. A credible and transparent process ensures that new provinces, if created, are viable, sustainable, and accepted by both local populations and the broader national framework.

QARMA

Quick Facts

1. How has Pakistan's federal system evolved under the 1973 Constitution, and what impact have civil–military and center–province power shifts had on governance?
2. What were the main changes introduced by the 18th Amendment regarding provincial autonomy and federal control?
3. Despite provinces receiving 57.5% of the divisible pool, why do many still rely on federal transfers?
4. How has weak coordination through the Council of Common Interests (CCI) affected effective federalism?
5. What structural changes are proposed in the 27th Amendment affecting the judiciary, armed forces, and fiscal authority?

Arguments

6. How can devolution be balanced with accountability to avoid weakening governance while protecting democracy?
7. In what ways has selective or uneven implementation of the 18th Amendment caused challenges?
8. How should judicial reforms improve transparency without politicizing appointments?
9. What measures can ensure fiscal autonomy is paired with provincial revenue responsibility?
10. How can constitutional amendments be designed to enhance stability without concentrating power?
11. What criteria should guide the creation of new provinces to avoid political manipulation?

Resolution Clause

12. How can the 18th Amendment be reaffirmed while introducing performance-based administrative reforms?
13. Why should quarterly CCI meetings have binding implementation authority, and how would this improve federal–provincial coordination?
14. What constitutional criteria (population, economic viability, administrative readiness) should be defined under Article 239(4) for creating new provinces?
15. How can provincial fiscal shares be protected while incentivizing local tax collection?
16. What transparent judicial oversight mechanisms can balance independence with accountability?
17. How can a Federal–Provincial Policy Harmonization Framework improve sectors like health, education, water, and disaster management?

Motions

18. What key points should be raised during debates on federal–provincial power balance?
19. When should delegates move to suspend debate to introduce constitutional clauses?
20. How can expert testimony inform decisions on judicial and fiscal reforms?

21. What are the main arguments in dividing the house on provincial autonomy versus central coordination?
22. What considerations should guide the final voting procedure on reform proposals?

Action Points

23. How can delegates effectively anchor speeches in constitutional articles to strengthen their arguments?
24. Why is it important to frame reforms as improvements rather than reversals?
25. How can delegates use institutional logic to counter emotional or nationalist arguments?
26. What safeguards can address counter-arguments related to national unity?
27. Why are phased, realistic reforms more effective than sweeping changes in constitutional amendments?

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